



COLORADO DIVISION OF RECLAMATION, MINING & SAFETY
MINERALS PROGRAM INSPECTION REPORT
PHONE: (303) 866-3567

The Division of Mining, Reclamation and Safety has conducted an inspection of the mining operation noted below. This report documents observations concerning compliance of the mining operation with the permit and the regulations of the Mined Land Reclamation Board. The report notes 1) Areas of successful compliance; 2) Problems and suggested corrective actions and/or 3) Possible violations to be considered for possible enforcement action by the Mined Land Reclamation Board. **OPERATORS SHOULD READ THIS REPORT CAREFULLY BECAUSE IT MAY REQUIRE CORRECTIVE ACTION AND/OR RESPONSES TO THE DIVISION IN ORDER TO AVOID CONSIDERATION OF POSSIBLE ENFORCEMENT ACTION BY THE MINED LAND RECLAMATION BOARD.**

MINE NAME: Larimer Quarry OPERATOR: CEMEX, Inc.
COUNTY: Larimer MINERAL: Limestone TYPE OF OPERATION: 112c
INSPECTOR(S): Peter Hays *[Signature]* 6/17/08
MINE ID # OR PROSPECTING ID #: M-1977-341
INSPECTION DATE: 06/13/08 DATE OF COMPLAINT: NA
INSPECTOR'S INITIALS: PSH TIME OF DAY (MILITARY): 10:00
INSPECTION TYPE CODE⁽¹⁾: MI POST INSP. CONTACTS⁽²⁾: NA
JOINT INSP. AGENCY CODE⁽²⁾: NO REASON FOR INSP. CODE⁽³⁾: IE
WEATHER CODE⁽⁴⁾: CR BOND CALCULATION TYPE⁽⁵⁾: NN
OP. REP. PRESENT: Patrick Fischer with CEMEX, Inc.

1. **INSPECTION TYPE CODE** - [CL-IN: IL=Illegal Operation, MI=Monitoring, MP=Mineral Prospect, SI=Surety-related, PR=Pre-operation]
2. **POST INSPECTION CONTACTS AND JOINT INSPECTION AGENCY CODE** - [CL-AG: NO=None, BL=BLM, CH=Colo. Dept. Health; CL=Land Board, CT=Citizen; CW=Wildlife, FS=Forest Service, HW=Hwy. Dept., LG=Local Government, SE=State Engr.]
3. **REASON FOR INSPECTION CODE** - [CL-RS: AG=Other Agency Request, CT=Citizen Complaint, IE=Normal I&E Program, HP=High Priority, PY=Priority]
4. **WEATHER CODE** - [CL-WE: CL=Cloudy, CR=Clear, IN=Inclement - prevented inspection, RN=Raining, SN=Snowing, WD=Windy]
5. **BOND CALCULATION TYPE** - [BC=Complete Bond, BP=Partial Bond, NN=None]

This list identifies the environmental and permit parameters inspected and gives a categorical evaluation of each. **IF PB OR PV IS INDICATED, YOU SHOULD READ THE FOLLOWING PAGES CAREFULLY IN ORDER TO ASSURE COMPLIANCE WITH THE TERMS OF YOUR PERMIT AND APPLICABLE RULES AND REGULATIONS.** If PV is indicated, you will be notified under separate cover when the Mined Land reclamation Board will consider possible enforcement action. **RECEIVED**

GENERAL INSPECTION TOPICS

JUN 18 2008

Division of Reclamation,
Mining and Safety

(AR) RECORDS Y (FN) FINANCIAL WARRANTY Y (RD) ROADS Y
(HB) HYDROLOGIC BALANCE Y (BG) BACKFILL & GRADING Y (EX) EXPLOSIVES NA
(PW) PROCESSING WASTE/TAILING NA (SF) PROCESSING FACILITIES NA (TS) TOPSOIL Y
(MP) GENL MINE PLAN COMPLIANCE. Y (FW) FISH & WILDLIFE N (RV) REVEGETATION Y
(SM) SIGNS AND MARKERS Y (SP) STORM WATER MGT PLAN N (SB) COMPLETE INSP Y
(ES) OVERBURDEN/DEV. WASTE Y (SC) EROSION/SEDIMENTATION .. Y (RS) RECL PLAN/COMP ... Y
(AT) ACID OR TOXIC MATERIALS NA (OD) OFF-SITE DAMAGE N (ST) STIPULATIONS NA

Y = Inspected and Found in Compliance
N = Not Inspected

PV = Inspected and Possible Violations Noted
NA = Not Applicable

PB = Inspected and Problems Noted

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OBSERVATIONS

The Larimer County Quarry was inspected by Peter Hays with the Division of Reclamation, Mining and Safety (Division) in response to a request for full reclamation release (SL-02) by CEMEX, Inc. Mr. Patrick Fischer with CEMEX, Inc. was present during the inspection. The pit was last inspected by the Division on September 1, 2004.

During the previous inspection, a five (5) acre portion of Pit A was excluded from the acreage reduction (AR-1) release, due to lack of established vegetation and large (1 foot to 4 feet) erosion features at the base of the pit floor.

The erosion gullies were repaired, topsoiled and revegetated by CEMEX since the previous inspection. The five acre site vegetation was well established and consistent with the surrounding vegetation. The vegetation consisted of winter and Russian rye, alfalfa, smooth brome and several varieties of wheat grass, which is consistent with the approved dryland seed mix. No erosion gullies were observed during the inspection and less than 10% bare ground was observed.

Mr. Fischer stated the landowners intend to develop the mine site into residential lots and the 5-acre area will be converted into a lake. A real estate sign was observed at the entrance to the site at the intersection of CR-4 and Parish Road.

No problems were observed during the inspection.

A comment letter from the Colorado Division of Water Resources is attached for your files.

The full Financial and Performance Warranty release request (SL-02) will be approved by the Division. The bond will be released under separate cover.

I & E Contact Address

NAME Monica Sowders
OPERATOR CEMEX, Inc.
STREET 5134 Ute Hwy, P.O. Box 529
CITY/STATE/ZIP Lyons, CO 80540

- ☐ CE
- ☐ BL
- ☐ FS
- ☐ HW
- ☐ HMWMD (CH)
- ☐ SE
- ☐ WQCD (CH)

Cc: Tony Waldron; DRMS

Enclosure

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The following problems (PB) and/or possible violations (PV) (and suggested corrective actions) were identified during this inspection. The problems should be corrected by the dates given, or they will become possible violations. The possible violations should be corrected by the dates given to reduce their severity when considered by the Mined Land Reclamation Board. The inspector noted on the previous page should be notified of all corrective actions taken.

PROBLEMS/POSSIBLE VIOLATIONS
AND
CORRECTIVE ACTIONS

DATE

1. PROBLEM:

None

PB or PV: NA
TOPIC(S): NA

CORRECTIVE ACTION:

None

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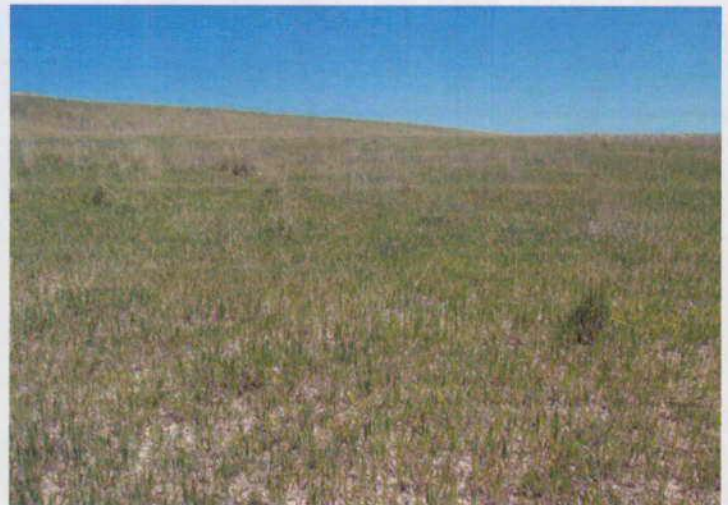
Looking west at the 5-acre area



Looking northwest at the 5-acre area



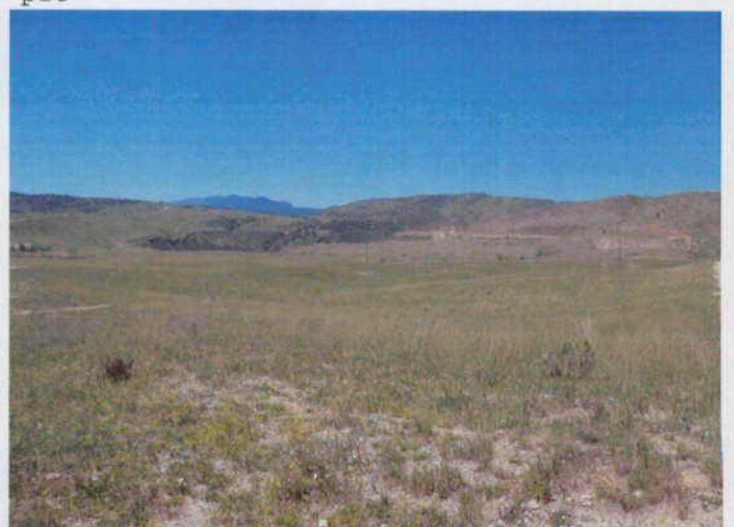
Looking north from bottom of the 5-acre pit



Looking northeast from bottom of the 5-acre pit



Looking southeast from north side of the 5-acre pit



Looking southwest from the north side of the 5-acre pit